



**NASH COUNTY BOARD OF ADJUSTMENT
REGULAR MEETING**

MONDAY, JUNE 22, 2026 AT 6:00 P.M.

**COMMISSIONERS ROOM – THIRD FLOOR
NASH COUNTY ADMINISTRATION BUILDING
120 WEST WASHINGTON STREET
NASHVILLE, NC 27856**

MEETING AGENDA

- 1. Call to Order.**
- 2. Determination of a Quorum.**
- 3. Recognition of the Voting Board Members for the Meeting.**
- 4. Election of Board Officers for 2025-2026 Year: Chairman & Vice-Chairman.**
- 5. Approval of Meeting Minutes.**
September 23, 2024 & May 27, 2025 Regular Meeting Minutes - Delayed
April 27, 2026 Regular Meeting Minutes
- 6. Quasi-Judicial Public Hearing on Variance Request V-260301.**
(Continued from the Board's Previous March 23, 2026 & April 27, 2026 Regular Meetings.)
Made by Dennis E. Mills, Sr. at 1480 Womble Rd, Nashville to reduce the rear property line minimum building setback requirement to permit a detached residential accessory building to remain in its current location.
 - a. Staff Update.**
 - b. Testimony of the Applicant.**
 - c. Testimony of Other Parties and/or Witnesses.**
 - d. Board Discussion.**
 - e. Motion to Adopt Amended Findings of Fact.**
 - f. Motion to Adopt Supporting Conclusions.**
 - g. Motion to Approve or Deny the Variance Request.**
 - h. Motion to Close the Public Hearing.**

(CONTINUED ON NEXT PAGE)

7. Quasi-Judicial Public Hearing on Special Use Permit Request S-260601.

Made by Amber Hinnant at 10346 Ida St, Wilson for a temporary hardship manufactured home proposed to be located behind the primary home.

a. Motion to Open the Public Hearing.

b. Staff Report.

c. Acceptance of Staff Report & Case File into the Record.

d. Testimony of the Applicant.

e. Testimony of Other Parties and/or Witnesses.

f. Board Discussion.

g. Motion to Adopt Findings of Fact.

h. Motion to Adopt Supporting Conclusions.

i. Motion to Approve or Deny the Special Use Permit Request.

j. Motion to Close the Public Hearing.

8. Other Business.

9. Adjournment.

NASH COUNTY BOARD OF ADJUSTMENT STANDARD FOR THE ISSUANCE OF A VARIANCE

The Nash County Unified Development Ordinance (UDO) establishes the land development regulations that apply within the County's planning and zoning jurisdiction.

A "variance" is defined as "official permission to depart from the requirements of this Ordinance" (UDO Art. II, Sec. 2-4.198.) All general variance requests are to be heard and decided by the Board of Adjustment.

The North Carolina General Statutes (N.C.G.S.), Chapter 160D, Article 7, Part 5 establishes the standard and criteria for the issuance of a variance.

When unnecessary hardships would result from carrying out the strict letter of a zoning regulation, the board of adjustment shall vary any of the provisions of the zoning regulation upon a showing of all of the following:

- (1) Unnecessary hardship would result from the strict application of the regulation. It is not necessary to demonstrate that, in the absence of the variance, no reasonable use can be made of the property.**
- (2) The hardship results from conditions that are peculiar to the property, such as location, size, or topography. Hardships resulting from personal circumstances, as well as hardships resulting from conditions that are common to the neighborhood or the general public, may not be the basis for granting a variance. A variance may be granted when necessary and appropriate to make a reasonable accommodation under the Federal Fair Housing Act for a person with a disability.**
- (3) The hardship did not result from actions taken by the applicant or the property owner. The act of purchasing property with knowledge that circumstances exist that may justify the granting of a variance is not a self-created hardship.**
- (4) The requested variance is consistent with the spirit, purpose, and intent of the regulation, such that public safety is secured and substantial justice is achieved.**

No change in permitted land uses may be authorized by a variance.

Appropriate conditions may be imposed on any variance, provided that the conditions are reasonably related to the variance.

A **four-fifths (4/5) majority vote** of the Board of Adjustment is necessary to grant a variance per N.C.G.S. § 160D-406(i).

NASH COUNTY BOARD OF ADJUSTMENT
VARIANCE REQUEST – STAFF REPORT

File Number: V-260301: Variance Request
Property Owner / Applicant: Dennis E. Mills, Sr. & Cynthia N. Mills
Location: 1480 Womble Rd, Nashville, NC 27856
Tax ID #: PIN 380100781424 / Parcel ID # 037235
Zoning District: A1: Agricultural
Variance Description: Reduction of Rear Minimum Building Setback Requirement
UDO Reference: Art. IX, Sec. 9-4.1 (A), Table 9-4-1 & Sec. 9-5.1 (B)
Notice of Public Hearing: Mailed to Property Owners within 600 Feet: Mar. 11, 2026
Posted at the Subject Property: Mar. 12, 2026

Findings of Fact (as Proposed by the Zoning Administrator):

- (1) The subject property is a 0.69-acre lot located at 1480 Womble Road, Nashville, NC 27856 as depicted on the survey map recorded in Plat Book 30 Page 106 of the Nash County Registry and which is further identified as Lot 29 of the Cottonwood Phase 2 Section One Subdivision as well as Nash County Tax Map PIN 380100781424 and Parcel ID # 037235.
- (2) The subject property was acquired by Dennis E. Mills, Sr. and wife, Cynthia N. Mills in September of 2004, per the general warranty deed recorded in Deed Book 2082 Pages 12-13 of the Nash County Registry.
- (3) A single-family dwelling was constructed and completed on the subject property in 2004 per the Nash County Tax Record.
- (4) The drain lines of the onsite septic system serving the dwelling are located on the western / rear side of the subject property per Nash County Wastewater Permit # 25338C completed in February 2004. Nash County Wastewater Repair Permit # 28335C was completed in July 2005 to abandon the initial septic lines and add three new septic lines further into the rear of the property.
- (5) On February 27, 2026, Mr. Mills visited the Planning & Inspections office and submitted an application for an Electrical Permit # P-26-836 for a “new service for a new construction building.” Through conversation with Planning & Inspections staff, it was discovered that a thirty-foot (30’) by thirty-foot (30’) – 900 square foot – detached residential accessory building was constructed by “Precision Metals” on the subject property without the issuance of a building permit. Mr. Mills stated that he was misled by “Precision Metals” and

was told that all necessary permits had been obtained. Later that same day, Senior Planner Aaron Chalker visited the subject property and confirmed that the existing 900 square foot structure encroached the rear property line minimum building setback.

- (6) The subject property is located within the A1: Agricultural Zoning District per the Official Zoning Map of Nash County.
- (7) The minimum building setback distance required in this zoning district between a rear property line and a detached residential accessory building with a gross floor area of six hundred (600) square feet or more is thirty feet (30') per the Nash County Unified Development Ordinance Art. IX, Sec. 9-4.1 (A), Table 9-4-1 and Sec. 9-5.1 (B).
- (8) The existing building currently encroaches approximately 16 feet into the required 30-foot rear property line minimum building setback distance at its closest point.
- (9) Therefore, the property owner has submitted Variance Request V-260301 to reduce this standard rear property line minimum building setback requirement from thirty feet (30') to approximately fourteen feet (14') to allow the existing nine hundred square foot (900 sq ft) detached residential accessory building to remain in its current location on the subject property.
- (10) On March 23, 2026, the Nash County Board of Adjustment held a quasi-judicial public hearing on Variance Request V-260301.
- (11) Notice of the public hearing was sent by first class mail on March 11, 2026 to the variance applicant and owner of the subject property and to the owners of record for tax purposes of all properties located within six hundred feet (600') of the subject property. Notice was also posted prominently in front of the subject property on March 12, 2026.
- (12) All persons who provided testimony during the public hearing were sworn in by the Board Chairman.
- (13) During the public hearing on March 23, 2026, Mr. and Mrs. Mills, the applicants and owners of the subject property, provided testimony that:
 - They had chosen the location for the building and had the concrete foundation poured without being aware of the minimum building setback requirements.
 - They were assured by their contractor, "Precision Metals," that a building permit had been obtained for the building when, in fact, they discovered later that no permit had been issued.

- They received written documentation from the contractor on the day of the building's erection, which they later realized stated in fine print that the contractor was not responsible for obtaining any necessary permits.
 - They stated that it was their expectation that the contractor would have recognized and notified them if the proposed location for the building did not comply with the applicable requirements prior to erecting the building on the property.
 - They stated that the contractor had stopped returning their telephone calls regarding this matter.
- (14) No members of the public present at the hearing chose to address the Board regarding this matter.
- (15) On March 23, 2026, the Nash County Board of Adjustment voted unanimously to table consideration of Variance Request V-260301 in order to allow the applicants additional time to explore all options for the subject building and to continue the public hearing on this matter to the Board's next regular meeting on April 27, 2026.
- (16) Following the March 23, 2026 meeting, the Planning Staff consulted the County Building Inspector and confirmed that due to the structure's status as an engineered metal building, a potential modification to reduce the enclosed area to less than 600 square feet in order to reduce the applicable rear property line minimum building setback to five feet (5') and to allow the building to remain in its current location on the subject property would require an evaluation of the building and determination by a licensed professional engineer at the owner's expense.
- (17) Also following the March 23, 2026 meeting, the applicant contacted the owners of the two parcels located immediately adjacent to the rear of the subject lot – Ms. Bobbie S. Deans, owner of the property located at 174 Ash Lily Ct, Nashville, which is further identified as Nash County Tax Map PIN 380100688256 and Mr. Charles Tirada representing MAC 2008, LLC, the owner of the property further identified as Nash County Tax Map PIN 380100681880 – to discuss potentially acquiring additional land area from them in order to relocate the subject lot's rear property line far enough away from the building to satisfy the 30-foot rear property line minimum building setback distance. While Ms. Deans expressed a willingness to discuss the proposal, Mr. Tirada declined the offer. Based on the building's current location on the subject property, the cooperation of both adjacent property owners would be required in order to effectively relocate the rear property line.
- (18) On April 27, 2026, the Nash County Board of Adjustment resumed the quasi-judicial public hearing on Variance Request V-260301.
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Supporting Conclusions (as Proposed by the Applicant):

- (1) The applicant has demonstrated that an unnecessary hardship would result from the strict application of the standard thirty-foot (30') rear property line minimum building setback requirement because it would require the applicant to either remove an approximately 16' x 30' section (over one-half) of the existing detached accessory structure or relocate the entire structure, which is built on a concrete slab, completely outside of the rear setback area, which could potentially impact the existing onsite septic system and its related repair area on the subject property. Note that the septic system on the subject property has already been repaired once in 2005 and allowing the structure to remain in its current location will reserve more land area for septic system repairs in the future, if necessary.
 - (2) The applicant has demonstrated that the hardship results from conditions that are peculiar to the subject property, specifically the location of the repaired septic system further into the rear of the property than was originally installed, and the fact that this lot is a legal nonconformity in the A1 Zoning District with an area of 30,077 square feet versus the minimum 40,000 square feet that is required by the current Unified Development Ordinance (UDO).
 - (3) The applicant has demonstrated that the hardship did not result from actions taken by the applicant or the property owner because the property owner hired "Precision Metals" who erected the building without any permits and misled the property owner to believe that all necessary permits were acquired. Additionally, the repair of the septic system, which occurred in 2005 shortly after the completion of the single-family dwelling on the property, significantly decreased the buildable area of the backyard.
 - (4) The applicant has demonstrated that the requested variance is consistent with the spirit, purpose, and intent of the regulation, such that public safety is secured and substantial justice is achieved because the standard thirty-foot (30') rear property line minimum building setback requirement is often most applicable when a rear property line is dividing two immediately adjacent residential back yards; however, this particular subject property is located immediately adjacent at its rear property line to an approximately 115.51-acre undeveloped tract of land that is encumbered by a large area of 100-Year Flood Hazard and the presence of Pig Basket Creek and its tributaries. The rear property line of the subject property is also adjacent to a drainage swale that is identified as a 15' Drainage & Utility Easement on Lot 26 (174 Ash Lily Ct) of the Cottonwood Phase 3 Section One Subdivision recorded in Plat Book 31 Page 188 in the Nash County Registry. Furthermore, the adjusted fourteen-foot (14') rear property line minimum building setback distance is still almost triple the five-foot (5') rear property line minimum building setback distance required for smaller detached residential accessory buildings with a gross floor area of less than six hundred (600) square feet per UDO Art. IX, Sec. 9-5.1 (B).
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Procedural Notes:

All proposed findings of fact and supporting conclusions above may be revised prior to adoption as necessary to reflect the arguments, evidence, and/or testimony presented during the public hearing held on this request.

Appropriate conditions may be imposed on the variance, provided that they are reasonably related to the variance.

A four-fifths (4/5) majority vote of the Board of Adjustment is necessary to grant a variance.

Suggested Motions:**MOTION #1 – ADOPT AMENDED FINDINGS OF FACT:**

I move that the Nash County Board of Adjustment adopts the amended Findings of Fact as proposed by the Zoning Administrator in the staff report. (Note any necessary revisions or additions.)

MOTION #2 – ADOPT SUPPORTING CONCLUSIONS:

I move that the Nash County Board of Adjustment adopts:

(A) ALL FOUR CONCLUSIONS AS PROPOSED BY THE APPLICANT TO SUPPORT APPROVAL OF THE VARIANCE REQUEST. (Note any necessary revisions or additions.)

OR

(B) AT LEAST ONE OF THE FOLLOWING CONCLUSIONS TO SUPPORT DENIAL OF THE VARIANCE REQUEST.

- (1) The applicant has **NOT** demonstrated that an unnecessary hardship would result from the strict application of the regulation.
- (2) The applicant has **NOT** demonstrated that the hardship results from conditions that are peculiar to the property.
- (3) The applicant has **NOT** demonstrated that the hardship did not result from actions taken by the applicant or the property owner.

- (4) The applicant has **NOT** demonstrated that the requested variance is consistent with the spirit, purpose, and intent of the regulation, such that public safety is secured and substantial justice is achieved.
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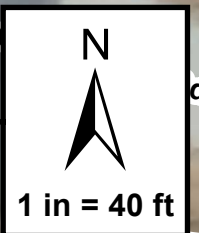
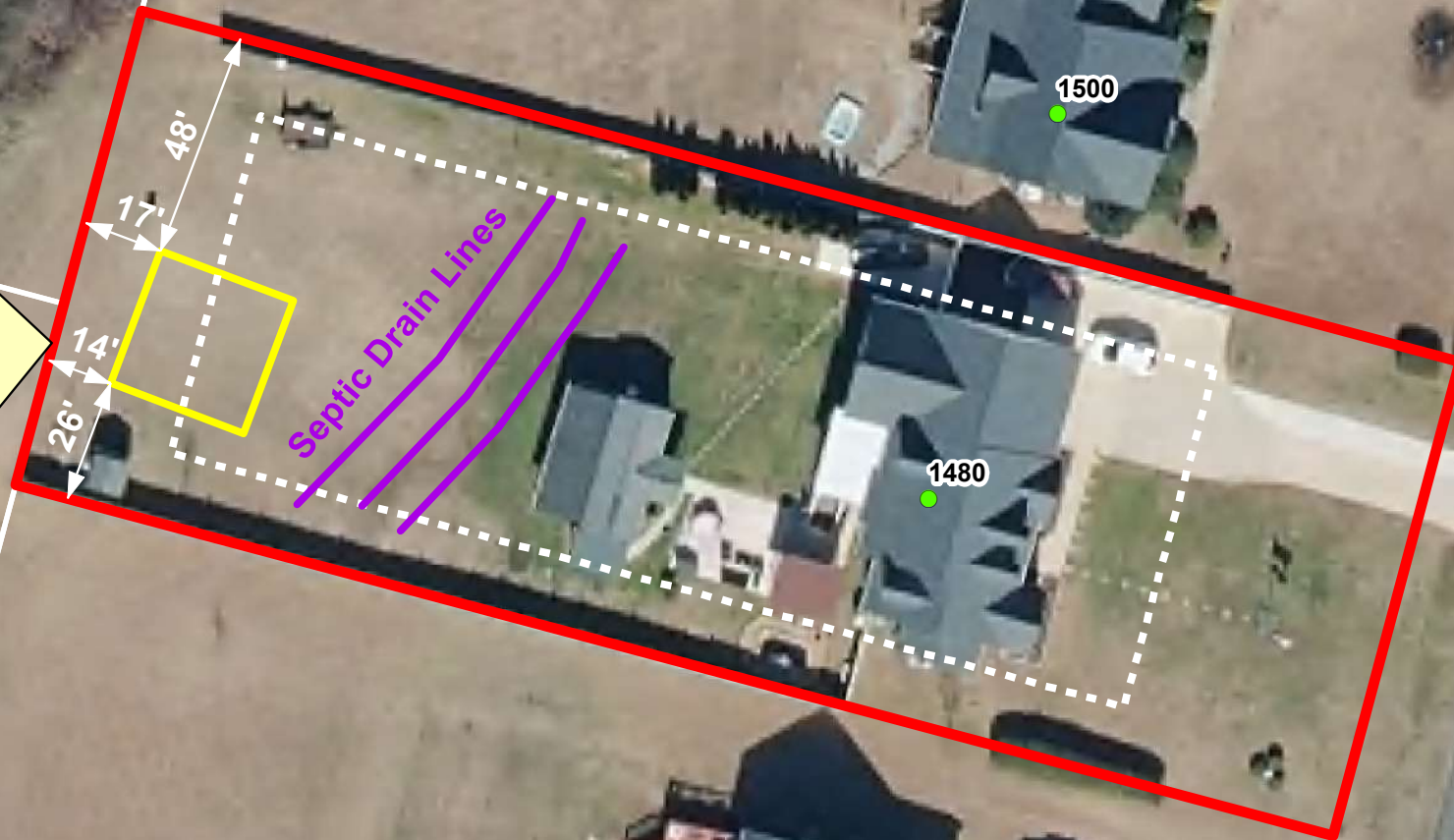
MOTION #3 – APPROVE OR DENY THE VARIANCE REQUEST:

I move that the Nash County Board of Adjustment **APPROVES** or **DENIES** (choose one) Variance Request V-260301 to reduce the standard rear property line minimum building setback requirement from thirty feet (30') to approximately fourteen feet (14') to allow the existing nine hundred square foot (900 sq ft) detached residential accessory building to remain in its current location on the subject property.

Variance Request V-260301: Site Plan
Property of Dennis E. Mills, Sr. & Cynthia N. Mills
1480 Womble Rd, Nashville, NC 27856

**Proposed
30' x 30'
Detached
Building**

**Request to
Reduce Rear
Building
Setback
From 30'
to Approx. 14'**



NASH COUNTY HEALTH DEPARTMENT

REF NO 25338C	DATE 10/21/2002	TWP NASHVILLE	MAP TAX NO. 280100781424
REQUESTER ROBERTSON NACON (C P2 L29E PO BOX 158 NASHVILLE NC 27856 TELEPHONE 552-250-4525		OWNER ROBERTSON REALTY PO BOX 158 NASHVILLE NC 27856	

SPECIFICATIONS COTTONWOOD PHASE II, LOT 20E (0.69 AC)	
LOCATION/DIRECTION 1480 WOMBLE RD, WD #25332016	
FEE 200	LAND SIZE 0.69 AC
SIGNATURE OF OWNER OR AUTHORIZED AGENT	

"CLIENT'S RESPONSIBILITY TO SEE THAT PLANNING DEPT.'S RULES ARE MET BEFORE IP WILL BE VALID"

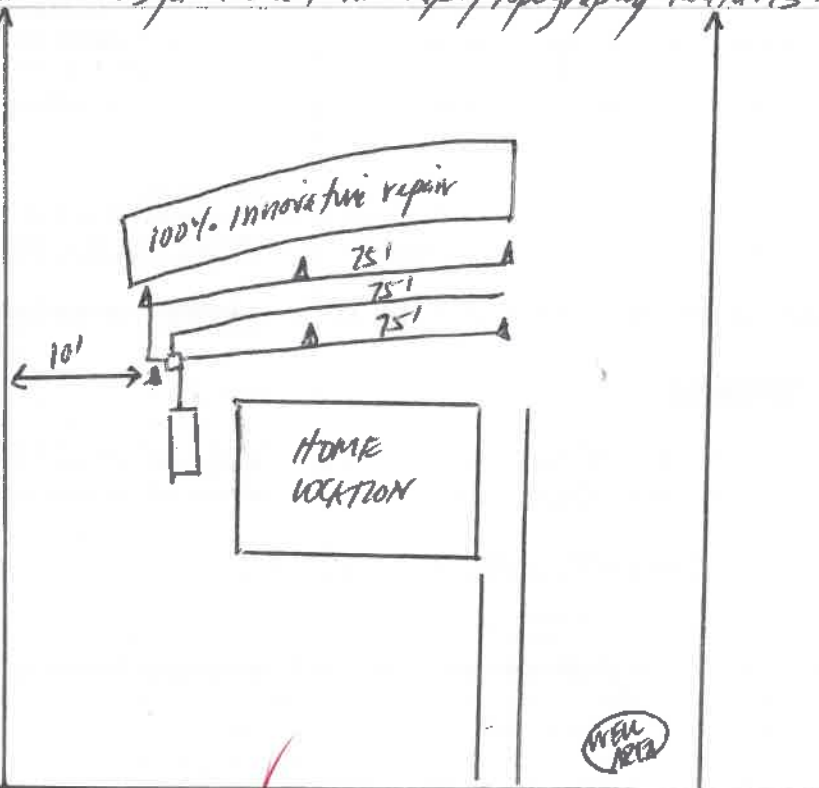
TOPO <u>PS</u>	TEXTURE <u>PS</u>	STRUCTURE <u>PS</u>	DEPTH <u>S</u>
R.HOR <u>S</u>	SOIL.WET <u>PS</u>	AVAIL.SP <u>S</u>	OTHER <u>-</u>
MINRL <u>S</u>	OVERALL <u>PS</u>	LTAR <u>0.4</u>	
#BEDRMS <u>3</u>	GPD <u>360</u>	OTHER <u>-</u>	TYPE.SYS <u>Innovative</u>
SZ.TANK <u>1,000</u>	SZ.CHAMB <u>-</u>	NITRIFI <u>225'X3'</u>	OPER.REQ <u>No</u>
SITE.LOC <u>-</u>	MAX TRENCH DEP <u>18"</u>	INSTALLER <u>Alfred Tyson</u>	

REMARKS: * 25% reduction innovative system due to landscape/topography features *

NOT TO SCALE

▲ FLAGS FOR SYSTEM

- Install 3- 75' lines on contour
- Cover system w/ 6" approved cover, sloped to shed surface water
- INSTALL DURING DRY CONDITIONS



WOMBLE ROAD

IMPROVEMENT PERMIT DATE: <u>10/24/02</u> ✓	ENV HEALTH SPEC: <u>Shel. H. H. H. H. H.</u>
CONSTRUCTION PERMIT DATE: <u>10/24/02</u> ✓	ENV HEALTH SPEC: <u>Shel. H. H. H. H. H.</u>
OPERATION PERMIT DATE: <u>2/11/04</u> ✓	ENV HEALTH SPEC: <u>Shel. H. H. H. H. H.</u>

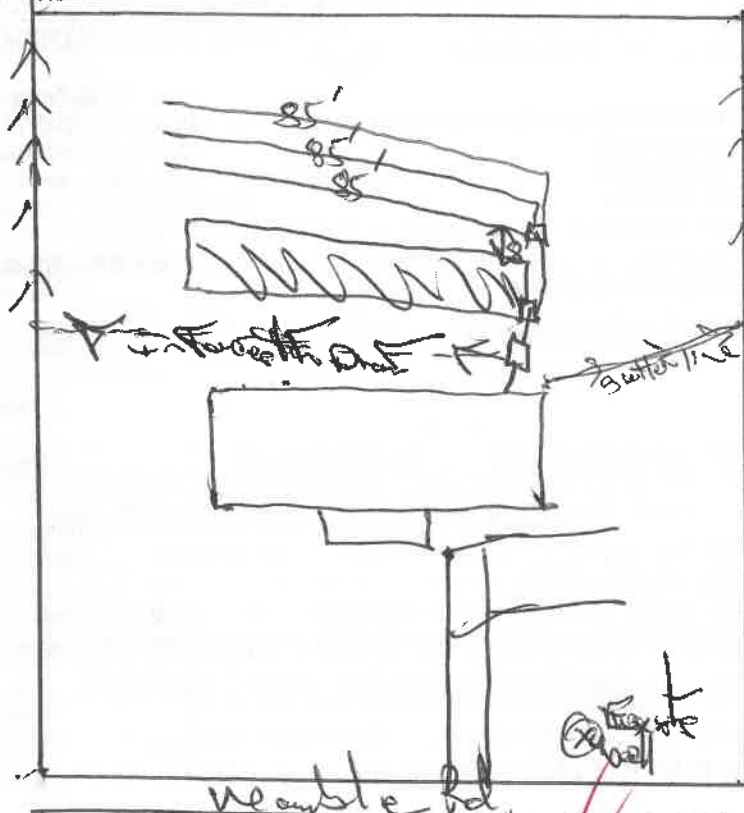
NASH COUNTY HEALTH DEPARTMENT

REF NO 28335C	DATE 06/09/2005	TWP NASHVILLE	MAP TAX NO. 380100781424
REQUESTER MILLS DENNIS (C P2 29E-REP 1480 WOMBLE RD NASHVILLE NC 27856 TELEPHONE 000		OWNER MILLS DENNIS E & CYNTHIA N 1480 WOMBLE RD NASHVILLE NC 27856	
SPECIFICATIONS COTTONWOOD PHASE II, LOT 29E (0.60 AC)			
LOCATION/DIRECTION 1480 WOMBLE RD, REPAIR PERMIT			
FEE 0		LAND SIZE 0.69 AC	
RECEIPT#		SIGNATURE OF OWNER OR AUTHORIZED AGENT	
REV# 9123			

"CLIENT'S RESPONSIBILITY TO SEE THAT PLANNING DEPT.'S RULES ARE MET BEFORE IP WILL BE VALID"

TOPO <u>PS</u>	TEXTURE <u>PS</u>	STRUCTURE <u>S</u>	DEPTH <u>S</u>
R.HOR <u>PS</u>	SOIL.WET <u>PS</u>	AVAIL.SP <u>S</u>	OTHER <u> </u>
MINRL <u>PS</u>	OVERALL <u>PS</u>	LTAR <u>.35</u>	
#BEDRMS <u>3</u>	GPD <u>360</u>	OTHER <u> </u>	TYPE.SYS <u>25' 3" rad</u>
SZ.TANK <u>Ext</u>	SZ.CHAMB <u> </u>	NITRIFI <u>3'x255'</u>	OPER.REQ <u> </u>
SITE.LOC <u> </u>	MAX TRENCH DEP <u>16"</u>	INSTALLER <u>Flora</u>	

REMARKS: REPAIR PERMIT



* The downspouts in trench on side of existing system. Repair supply line by gutter on back rear of house to side line

IMPROVEMENT PERMIT DATE: <u>6/10/05</u>	ENV HEALTH SPEC: <u>W.D. Nichols</u>
CONSTRUCTION PERMIT DATE: <u>6/10/05</u>	ENV HEALTH SPEC: <u>W.D. Nichols</u>
OPERATION PERMIT DATE: <u>7/13/05</u>	ENV HEALTH SPEC: <u>W.D. Nichols</u>











NASH COUNTY BOARD OF ADJUSTMENT
STANDARD FOR THE ISSUANCE OF A SPECIAL USE PERMIT

The Nash County Unified Development Ordinance (UDO) establishes the land development regulations that apply within the County's planning and zoning jurisdiction.

A "special use permit" is defined as: "A permit issued to authorize development or land uses in a particular zoning district upon presentation of competent, material, and substantial evidence establishing compliance with one or more general standards requiring that judgment and discretion be exercised as well as compliance with specific standards" (UDO Art. II, Sec. 2-4.172.)

All special use permit requests are to be heard and decided by the Board of Adjustment.

The Board of Adjustment may **APPROVE** a special use permit when:

- (1) The requested special use permit is within the Board of Adjustment's jurisdiction according to the UDO's Table of Permitted Uses;**
- (2) The permit application submittal is complete; and**
- (3) If completed as proposed, the development will comply with the requirements of the UDO.**

The Board of Adjustment may **DENY** a special use permit if it concludes, based upon the information submitted at the public hearing, that if completed as proposed, the development, more probably than not:

- (1) Will materially endanger the public health or safety; or**
- (2) Will substantially injure the value of adjoining or abutting property; or**
- (3) Will not be in harmony with the area in which it is to be located; or**
- (4) Will not be in general conformity with the Nash County Comprehensive Land Use Plan.**

Reasonable conditions may be attached to a special use permit with the consent of the applicant in order to ensure that the applicable UDO requirements are met.

A simple majority vote of the Board of Adjustment is necessary to grant a special use permit per N.C.G.S. § 160D-406(i).

NASH COUNTY BOARD OF ADJUSTMENT
SPECIAL USE PERMIT REQUEST – STAFF REPORT

File Number: S-260601: Special Use Permit Request
Property Owner / Applicant: Amber Hinnant
Location: 10346 Ida St, Wilson, NC 27896
Tax ID #: PIN 370500144348 / Parcel ID # 026039
Zoning District: R-40 (Single-Family Residential)
Proposed Land Use: Temporary Hardship Manufactured Home
UDO Reference: Art. XI, Sec. 11-4.77: Temporary Hardship Manufactured Home
Notice of Public Hearing: Mailed to Property Owners within 600 Feet: June 10, 2026
Posted at the Subject Property: June 11, 2026
Published in the Rocky Mount Telegram: June 12, 2026

Findings of Fact (as Proposed by the Zoning Administrator):

- (1) The subject property is a 3.21-acre lot located at 10346 Ida St, Wilson, NC 27896 and further identified as Lot 2 of the Jenkins Acres Subdivision Section Two as recorded in Plat Book 18 Page 13 of the Nash County Registry as well as Nash County Tax Map PIN 370500144348 and Parcel ID # 026039.
- (2) The subject property currently includes a Class A double-wide manufactured home located on the front (northern) portion of the lot.
- (3) The subject property is located within the R-40 (Single-Family Residential) Zoning District per the Official Zoning Map of Nash County.
- (4) Amber Hinnant, the owner of the subject property, desires to set up a single-wide manufactured home behind her existing home to serve as a residence for her two grandparents, Johnny Holland and Wanda Holland, in order to provide care and be in close proximity to them.
- (5) Therefore, Amber Hinnant has submitted Special Use Permit Request S-260601 in order to locate a temporary hardship manufactured home on the subject property.
- (6) A temporary hardship manufactured home is defined as “a Class B manufactured home, providing an environment facilitating a caregiver's provision of care for a mentally or physically impaired person” per the Nash County Unified Development Ordinance (UDO) Art. II, Sec. 2-4.186.

- (7) A temporary hardship manufactured home is a land use permitted for development in this R-40 (Single-Family Residential) Zoning District with the issuance of a special use permit by the Nash County Board of Adjustment per UDO Art. IX, Sec. 9-3.1, Table 9-3-1: Table of Permitted Uses and subject to the development standards specifically required for a temporary hardship manufactured home by UDO Art. XI, Sec. 11-4.77.
- (8) The Zoning Administrator finds that the requested special use permit is within the Board of Adjustment's jurisdiction according to the UDO's Table of Permitted Uses.
- (9) The Zoning Administrator finds that the permit application submittal is complete per the requirements of UDO Art. IV, Sec. 4-3, because it includes a completed special use permit application form, the required permit application fee, and the required site plan for the proposed development.
- (10) The Zoning Administrator finds that, if completed as proposed in the application, the development will comply with the standards specifically required for a temporary hardship manufactured home by UDO Art. XI, Sec. 11-4.77 as follows:

(A) **Where Required: A1, all Residential, OI, and all Commercial Zoning Districts.**

The subject property is located within the R-40 (Single-Family Residential) Zoning District per the Official Zoning Map of Nash County.

(B) **Type: A temporary hardship manufactured home shall be a Class B manufactured home, facilitating a caregiver's provision of care for a mentally or physically impaired person. Hardships shall be considered for qualified impairments only and not for financial reasons.**

The proposed temporary hardship manufactured home shall be a Class B single-wide manufactured home facilitating a provision of care by Amber Hinnant, the owner of the subject property, for Johnny & Wanda Holland, two physically impaired persons.

(C) **Location:**

(1) **A temporary hardship manufactured home shall be permitted as an accessory use on property owned or occupied by either the caregiver or the mentally or physically impaired person as their primary residence.**

The proposed temporary hardship manufactured home shall be permitted as an accessory use to the existing Class A double-wide manufactured home located at 10346 Ida St, which is owned and occupied by Amber Hinnant, the caregiver, as her primary residence.

- (2) **Only one temporary hardship manufactured home shall be allowed on a lot or parcel of land.**

The proposed temporary hardship manufactured home would be the only temporary hardship manufactured home permitted on the subject property.

- (3) **A temporary hardship manufactured home shall not be permitted on a property prior to the occupancy of the primary residence.**

The primary residence located on the subject property is currently occupied by Amber Hinnant, the caregiver.

- (4) **A temporary hardship manufactured home shall comply with all setback requirements applicable to principal dwellings in the zoning district in which it is located.**

Per the submitted site plan, the proposed location of the temporary hardship manufactured home on the subject property shall comply with all the minimum building setback requirements applicable to principal dwellings in the R-40 (Single-Family Residential) Zoning District in which it is to be located.

- (D) **Occupant: Either a mentally or physically impaired person receiving care and/or supervision from a caregiver residing in the principal dwelling, or a caregiver providing care and/or supervision for a mentally or physically impaired person residing in the principal dwelling may occupy the temporary unit.**

Johnny & Wanda Holland, two physically impaired persons, will occupy the temporary unit while receiving care and supervision from Amber Hinnant, the caregiver, who resides in the principal dwelling.

- (1) **A mentally or physically impaired person shall require assistance with two or more activities of daily living (bathing, dressing, personal hygiene, ambulation or locomotion, transferring, toileting, and eating) as certified in writing by a physician licensed to practice in North Carolina.**

The applicant has submitted written certification from Wallace R. Nelms Jr., M.D. with Nelms Family & Preventive Medicine in Wilson, NC dated April 28, 2026 verifying that, due to "currently managing multiple chronic illnesses," Mr. and Mrs. Holland require "ongoing, daily caregiver assistance to ensure their well-being and to manage their healthcare needs effectively," including, but not limited to, assistance with activities of daily living such as bathing and dressing.

Additional written certification was provided specifically for Mrs. Wanda Holland from Ana Khoun, FNP-C with 360 Wellness & Nutrition in Wilson, NC dated

April 22, 2026 verifying that “she has recently been diagnosed with a medical condition that will require assistance from her granddaughter as it pertains to activities of daily living.”

(2) A caregiver shall be an individual 18 years of age or older.

Amber Hinnant, the caregiver, is an individual older than 18 years of age.

(E) Evidence of Compliance: The permit applicant may be required to provide evidence of compliance with these requirements on an annual basis as long as the temporary hardship manufactured home remains on the property. The evidence may involve the inspection of the home by the County at reasonable times convenient to the caregiver, not limited to any annual compliance confirmation, and annual renewal of the doctor's certification.

The applicant has been advised of the continuing responsibility to provide evidence of compliance with the applicable requirements as long as the temporary hardship manufactured home remains on the subject property.

(F) Removal: Any temporary hardship manufactured home shall be removed within 60 days in which the mentally or physically impaired person is no longer receiving or is no longer in need of the assistance provided for in this section. If the temporary hardship manufactured home is needed for another mentally or physically impaired person in the same location, the applicant may submit a doctor's certification for that individual within the 60-day period for review and approval by the Zoning Administrator.

The applicant has been advised of the requirement that the temporary hardship manufactured home shall be removed from the subject property within 60 days after the mentally or physically impaired person is no longer receiving care or is no longer in need of assistance at this location.

- (11) On June 22, 2026, the Nash County Board of Adjustment held a quasi-judicial public hearing on Special Use Permit Request S-260601.
- (12) Notice of the public hearing was sent by first class mail on June 10, 2026 to the special use permit applicant, to the owner of the subject property, and to the owners of record for tax purposes of all properties located within 600 feet of the subject property; posted prominently in front of the subject property on June 11, 2026; and published in the Rocky Mount Telegram on June 12, 2026.
- (13) All persons who provided testimony during the public hearing were sworn in by the Board Chairman.

Supporting Conclusions (as Proposed by the Applicant):

- (1) The requested special use permit is within the Board of Adjustment's jurisdiction according to the UDO's Table of Permitted Uses.
- (2) The permit application submittal is complete.
- (3) If completed as proposed, the development will comply with the standards required for a temporary hardship manufactured home by UDO Art. XI, Sec. 11-4.77.
- (4) If completed as proposed, **the temporary hardship manufactured home will not materially endanger the public health or safety.**
- (5) If completed as proposed, **the temporary hardship manufactured home will not substantially injure the value of adjoining or abutting property** because there are multiple existing Class B manufactured homes along Ida St and in the surrounding community.
- (6) If completed as proposed, **the temporary hardship manufactured home will be in harmony with the area in which it is to be located** because there are multiple existing Class B manufactured homes along Ida St and in the surrounding community.
- (7) If completed as proposed, **the temporary hardship manufactured home will be in general conformity with the Nash County Comprehensive Land Use Plan** because Class B manufactured homes are explicitly recognized by the plan as a typical residential land use that is to be allowed in the designated Residential / Agricultural Area in which the subject property is located.

Procedural Notes:

All proposed findings of fact and supporting conclusions above may be revised prior to adoption as necessary to reflect the arguments, evidence, and/or testimony presented during the public hearing held on this request.

Reasonable conditions may be attached to a special use permit with the consent of the applicant in order to ensure that the applicable UDO requirements are met.

A simple majority vote of the Board of Adjustment is necessary to grant a special use permit.

Suggested Motions:

MOTION #1 – ADOPT FINDINGS OF FACT:

I move that the Nash County Board of Adjustment adopts the Findings of Fact as proposed by the Zoning Administrator in the staff report. (Note any necessary revisions or additions.)

MOTION #2 – ADOPT SUPPORTING CONCLUSIONS:

I move that the Nash County Board of Adjustment adopts:

(A) ALL SEVEN CONCLUSIONS AS PROPOSED BY THE APPLICANT TO SUPPORT APPROVAL OF THE SPECIAL USE PERMIT REQUEST. (Note any necessary revisions or additions.)

OR

(B) AT LEAST ONE OF THE FOLLOWING CONCLUSIONS TO SUPPORT DENIAL OF THE SPECIAL USE PERMIT REQUEST.

- (1) The requested special use permit **IS NOT** within the Board of Adjustment's jurisdiction according to the UDO's Table of Permitted Uses.
 - (2) The permit application submittal **IS NOT** complete.
 - (3) If completed as proposed, the development **WILL NOT** comply with the standards required for a temporary hardship manufactured home by UDO Art. XI, Sec. 11-4.77.
 - (4) If completed as proposed, the development, more probably than not, **WILL** materially endanger the public health or safety.
 - (5) If completed as proposed, the development, more probably than not, **WILL** substantially injure the value of adjoining or abutting property.
 - (6) If completed as proposed, the development, more probably than not, **WILL NOT** be in harmony with the area in which it is to be located.
 - (7) If completed as proposed, the development, more probably than not, **WILL NOT** be in general conformity with the Nash County Comprehensive Land Use Plan.
-

MOTION #3 – APPROVE OR DENY THE SPECIAL USE PERMIT REQUEST:

I move that the Nash County Board of Adjustment **APPROVES** or **DENIES** (choose one) Special Use Permit Request S-260601 for the proposed temporary hardship manufactured home.

Permit Conditions (as Recommended by the Zoning Administrator):

- (1) The development of the proposed temporary hardship manufactured home on the subject property shall be in accordance with the submitted site plan as well as in compliance with all other applicable state and local regulations, including, but not limited to, the development standards required for a temporary hardship manufactured home by UDO Art. XI, Sec. 11-4.77.
 - (2) The permit applicant shall, upon request, provide evidence of compliance with the applicable zoning requirements on an annual basis as long as the temporary hardship manufactured home remains on the subject property. The evidence may involve the inspection of the home by the County at reasonable times convenient to the caregiver, not limited to any annual compliance confirmation, and annual renewal of the doctor's certification.
 - (3) The temporary hardship manufactured home shall be removed from the subject property within 60 days after the mentally or physically impaired person is no longer receiving care or is no longer in need of assistance at this location. If the temporary hardship manufactured home is needed for another mentally or physically impaired person in the same location, the applicant may submit a doctor's certification for that individual within the 60-day period for review and approval by the Zoning Administrator.
 - (4) This special use permit is issued subject to the subsequent approval and issuance of the following additional permits, as applicable:
 - (A) Nash County Zoning Permit
 - (B) Nash County Environmental Health Compliance Permit
 - (C) Nash County Manufactured Home Permit
 - (D) Nash County Residential Trade Permits (Plumbing, Mechanical, & Electrical)
-

Special Use Permit Request S-260601
Property of Amber Hinnant
Aerial Photo



10312

10313

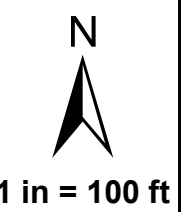
10346

**Proposed
Temporary Hardship
Manufactured Home**

Prop.
Septic

10343

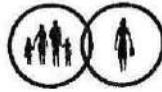
195 N



Special Use Permit Request S-260601
Property of Amber Hinnant
Site Plan



Nelms Family & Preventive Medicine



Wallace R. Nelms Jr., M.D.

Date: April 28, 2026

To Whom It May Concern:

This letter serves to certify that my patient, **Johnny Holland**, was seen and evaluated in my office on **April 27, 2026**.

Mr. Holland and his wife are currently managing multiple chronic illnesses. Furthermore, Mrs. Holland is in recovery following recent breast cancer surgery. Due to these significant health challenges, the couple requires ongoing, daily caregiver assistance to ensure their well-being and to manage their healthcare needs effectively.

Their granddaughter is currently providing this essential daily support. Her duties include, but are not limited to:

- **Medical Support:** Managing and administering proper medications and providing transportation to and from doctor appointments and treatments.
- **Personal Care:** Assisting with activities of daily living, including bathing, dressing, and cooking/providing meals.
- **Household Management:** Managing finances, shopping for household supplies and groceries, and performing cleaning duties.

In my professional medical opinion, this level of care is necessary **indefinitely**. I also strongly advise that they consider relocating closer to family to facilitate this improved support system and ensure their safety.

Sincerely,

Wallace R. Nelms Jr. M.D.

360 Wellness & Nutrition, PA

April 22, 2026

To whom it may concern,

Mrs. Wanda Holland (DOB 11/5/1955) is a patient at our practice. She has recently been diagnosed with a medical condition that will require assistance from her granddaughter as it pertains to activities of daily living. This medical condition requires frequent visits for appointments and treatment sessions. Being in close proximity to her granddaughter will lessen her burden with transportation, care after surgery, medication administration, cooking/ cleaning, dressing/ bathing. Having her home moved to her granddaughter's land will aid in the aforementioned reason along with providing emotional support during this time.

Please let us know if we can be of further assistance.

Sincerely,

A handwritten signature in cursive script, appearing to read 'Ana Khoun', written in black ink.

Ana Khoun, FNP-C